

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

CERTIFICATION OF JUAN M. BARRAGAN

I, Juan M. Barragan, of full age, hereby certify:

1. I am an attorney-at-law and responsible for handling this matter on behalf of The Port Authority of New York and New Jersey (the "Port Authority"). I am fully familiar with the circumstances set forth herein based upon my review of the file maintained by the Port Authority Law Department.

2. I submit this certification in opposition to Port Elizabeth Terminal & Warehouse Corp.'s ("PETW") motion to extend the time to file proposed findings of fact, conclusions of law, and appendix until after the commission has ruled on PETW's exceptions to and appeal of Administrative Law Judge ("ALJ"), Erin M. Wirth's Initial Decision Granting Motion to Partially Dismiss Complaint (the "Initial Decision").

3. In sum, PETW's motion should be denied because its request for an extension is untimely and there is no good cause for the delay in making the request.

4. In addition, PETW's claim that the ALJ erred in denying its motion to extend the discovery end date is without merit.

A. PETW's request for an extension is untimely and there is no good cause for the delay in making this request.

5. On April 17, 2018, the ALJ served her Initial Decision dismissing PETW's claim for reparations and the second and third causes of action of its complaint.

6. PETW appealed the ALJ's Initial Decision on May 8, 2018.

7. On May 31, 2018, the ALJ served her Revised Scheduling Order.

8. The Revised Scheduling Order required PETW to file its brief, proposed findings of fact, and appendix of the remaining cause of action by July 9, 2018.

9. Thus, as of May 31, 2018, PETW knew it was required to file its brief, proposed findings of fact, and appendix by July 9, 2018.

10. Therefore, PETW had 39 days to request an extension for same to be timely.

11. Despite having 39 days, PETW waited until July 13, 2018, after the deadline had passed, to request an extension.

12. Notably absent from the certification of PETW's counsel is any explanation as to why it did not file the request for an extension in a timely manner.

13. Based on the foregoing, the Port Authority submits that PETW's motion should be denied; PETW's request for an extension is untimely and there is no good cause for the delay.

B. PETW's claim that the ALJ erred in denying its motion to extend the discovery end date is without merit.

14. In his certification, PETW's counsel claims that it could not file a motion to compel discovery because same "would have been premature inasmuch as Complainant Port Elizabeth Terminal & Warehouse Corp. was attempting to work cooperatively in order to obtain the additional discovery as the Court previously directed and therefore as of March 1, 2018, a motion to compel was not ripe." *See* the July 13, 2018 Certification of PETW's counsel at p. 4, ¶ 12.

15. This is incorrect because there were no discovery disputes at the time PETW sought to extend the discovery end date.

16. On February 26, 2018, PETW served a request for production of documents upon the Port Authority. A true and correct copy of PETW's February 26, 2018 request for production of documents is annexed hereto as Exhibit ("Ex.") A.

17. On March 23, 2018, the Port Authority provided responses to PETW's February 26, 2018 request for production of documents. A true and correct copy of the Port Authority's March 23, 2018 responses without enclosures is annexed hereto as Ex. B.

18. Included in the Port Authority's March 23, 2018 responses were 297 pages of documents, which were bates numbered PA005995-PA006291. *See* Ex. B.

19. At no time following the Port Authority's service of its March 23, 2018 responses did PETW object to same or indicate that they were deficient in any manner.

20. At no time following the Port Authority's service of its March 23, 2018 responses did PETW make any additional discovery requests or notice the deposition of additional witnesses.

21. As such, there were no discovery disputes at the time that PETW sought to extend the discovery end date.

22. Therefore, PETW did not exhaust any efforts to meet and confer because there were no discovery disputes to meet and confer over.

23. In his certification, PETW's counsel claims that time and expense will be preserved if its motion is granted because it may result in additional discovery and briefing to address the issues raised. *See* the July 13, 2018 Certification of PETW's counsel at p. 6, ¶ 21.

24. As set forth above, PETW has not served any additional discovery demands, noticed any depositions, or objected to any of the Port Authority's discovery responses.

25. Therefore, there is no discovery to be had.

26. For the foregoing reasons, the Port Authority respectfully requests that the FMC deny PETW's motion to extend the deadline to file its brief, proposed findings of fact, and appendix.

I certify that the foregoing statements are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

PORT AUTHORITY LAW DEPARTMENT
*Attorneys for The Port Authority of New York
and New Jersey*

By: 

Juan M. Barragan

Dated: July 16, 2018

EXHIBIT A

LAW OFFICE OF DONALD F. BURKE

45 GALE ROAD

BRICK, NEW JERSEY 08723

(732) 966-4922

Email: DonaldBurkeEsq@gmail.com

DONALD F. BURKE, ESQ.

Certified by the New Jersey Supreme Court as a Civil Trial Attorney

Member of the Bars of New Jersey & New York

DONALD F. BURKE JR., ESQ.

Member of the Bars of New Jersey & New York

February 26, 2018

Juan M. Barragan, Esq.
Port Authority of New York & New Jersey
4 World Trade Center
150 Greenwich Street
New York, New York 10007

Re: Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority of
New York and New Jersey,
Federal Maritime Commission Docket No. 17-07

Dear Mr. Barragan

Kindly accept this letter following up on the requests made at the depositions held in the above referenced matter. Please provide the following:

1. The RFPs that went out with regard to building 1400 and the LaFarge group of buildings.
2. Sign in sheets conducted related to the inspections in conjunction with the RFPs for building 1400 as well as the LaFarge group of buildings.
3. Responses to the RFPs regarding building 1400 as well as the LaFarge group of buildings.
4. Lease agreement between the port authority and Columbia Coastal for the property PET&W's proposed to use as a state-of-the-art warehouse facility (Centerpoint proposal).
5. Correspondence between the port authority and PNCT regarding space lease to pee T&W provided to PNCT and then subleased by the port authority and PNCT to PET&W.

6. Monthly reports regarding Port Authority tenants in arrears from 2010 to present as testified to by Mr. Ruda.
7. Settlement Agreements between the PANYNJ and
 - a. PNCT,
 - b. FAPS,
 - c. AWI/ASI,
 - d. Other tenants from 2008 to present.
8. Correspondence regarding transfer of property held by PET&W to PNCT including the arrangement regarding the properties subleased to PET&W by PNCT with the concurrence of PANYNJ. This to include correspondence regarding rent owed.

Thank you.

Very Truly Yours,

s/Donald F. Burke

Donald F. Burke, Esq.

EXHIBIT B

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY'S RESPONSES TO
PORT ELIZABETH TERMINAL & WAREHOUSE CORP.'S FEBRUARY 26, 2018
REQUEST FOR PRODUCTION OF DOCUMENTS**

Pursuant to 46 C.F.R. § 502.146, Respondent, The Port Authority of New York and New Jersey (the "Port Authority"), hereby responds to the request of production of documents of Complainant, Port Elizabeth Terminal & Warehouse Corp. ("PETW"), dated February 26, 2018 as follows:

Qualifications to Responses

The information supplied in these responses to request for production of documents is not based solely on the knowledge of the executing party. It includes knowledge and information of the party, his/her agents, representatives and attorney (unless privileged) and may also include information obtained from documents, records and information exchanged in discovery proceedings. The word usage and sentence structure may be that of the attorney assisting in the preparation of the responses and thus does not necessarily purport to be the precise language of the executing party.

The Port Authority's Responses to PETW's February 26, 2018 Request for Production of Documents

1. The RFPs that went out with regard to building 1400 and the LaFarge group of buildings.

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter. Without waiving this objection, see documents bates numbered PA005995-PA006045.*

2. Sign in sheets conducted related to the inspections in conjunction with the RFPs for building 1400 as well as the LaFarge group of buildings.

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter. Without waiving this objection, see documents bates numbered PA006046-PA006048.*

3. Responses to the RFPs regarding building 1400 as well as the LaFarge group of buildings.

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter and may include documents that are protected by the deliberative process privilege because to date, the RFP has not been awarded. Without waiving these objects, see documents bates numbered PA006049-PA006257.*

4. Lease agreement between the port authority and Columbia Coastal for the property PET&W's proposed to use as a state-of-the-art warehouse facility (Centerpoint proposal).

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter. Without waiving this objection, see documents bates numbered PA006258-PA006291.*

5. Correspondence between the port authority and PNCT regarding space lease to pee T&W provided to PNCT and then subleased by the port authority and PNCT to PET&W.

Response: *The Port Authority objects to this request because the phrase "space less to pee T&W" is ambiguous and unclear. The Port Authority further objects to this request to the extent that it is overly broad in that it seeks records covering an unlimited time period and responding to same would be unduly burdensome and time consuming. Without waiving these objections, the Port Authority is not in possession of any documents responsive to this request.*

6. Monthly reports regarding Port Authority tenants in arrears from 2010 to present as testified to by Mr. Ruda.

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter. The Port Authority also objects to this request on the ground that it seeks information that is not reasonably calculated to lead to the discovery of admissible evidence. The Port Authority further objects to this request to the extent that it is overly broad in that it seeks records covering an eight-year time period and responding to same would be unduly burdensome and time consuming.*

7. Settlement Agreements between the PANYNJ and

- a. PNCT,
- b. FAPS,
- c. AWI/ASI,
- d. Other tenants from 2008 to present.

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter. The Port Authority also objects to this request on the ground that it seeks information that is not reasonably calculated to*

lead to the discovery of admissible evidence. The Port Authority further objects to this request to the extent that it is overly broad in that it seeks records covering a ten-year time period and responding to same would be unduly burdensome and time consuming.

8. Correspondence regarding transfer of property held by PET&W to PNCT including the arrangement regarding the properties subleased to PET&W by PNCT with the concurrence of PANYNJ. This to include correspondence regarding rent owed.

Response: *The Port Authority objects to this request on the ground that it seeks information that is not relevant to any of the issues raised in this matter. Without waiving this objection, all documents in possession of the Port Authority that are responsive to this request have been produced.*

PORT AUTHORITY LAW DEPARTMENT
*Attorneys for The Port Authority of New York
and New Jersey*

By: 

Juan M. Barragan

Dated: March 23, 2018

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PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT

AFFIDAVIT OF SERVICE

Tyler L. Hinton, being duly sworn, deposes and says:

That I am a Law Intern in The Port Authority of New York and New Jersey Law Department, am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, New York, New York.

That on the 23rd day of March 2018, I served the annexed **THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY'S RESPONSES TO PORT ELIZABETH TERMINAL & WAREHOUSE CORP.'S FEBRUARY 26, 2018 REQUEST FOR PRODUCTION OF DOCUMENTS** upon:

Law Offices of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West, Suite 700
Washington, DC 20036
Attn: Paul M. Donovan, Esq.

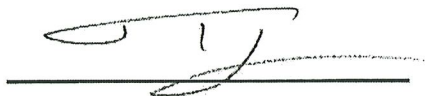
by depositing a true copy thereof in a sealed wrapper, in a depository maintained by FedEx to be shipped via FedEx Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.

Sworn to before me this
23rd day of March 2018.



Notary Public

Natalie D. Russell
NOTARY PUBLIC, State of New York
No. 01RU6358214
Qualified in New York County
Commission Expires May 8, 2021



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 JUAN BARRAGAN
 THE PORT AUTHORITY OF NY & NJ
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 FL 24
 NEW YORK, NY 10007
 UNITED STATES US

SHIP DATE: 23MAR18
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LAW OFFICE DONALD F. BURKE
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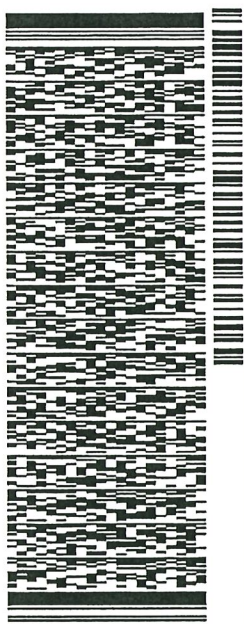
BRICK NJ 08723

(732) 966-4922

REF: PETW

INV:

DEPT:



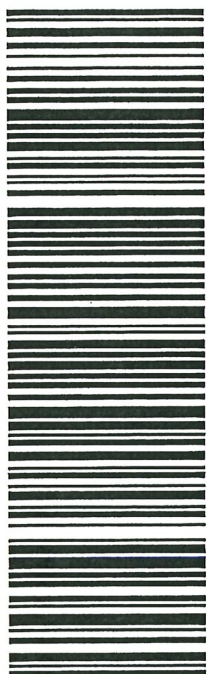
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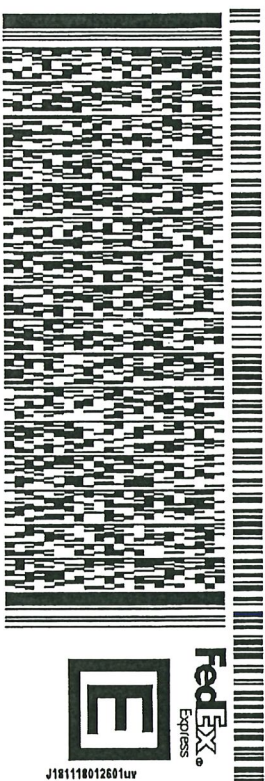
TO **PAUL M. DONOVAN, ESQ.**

LAROE, WINN, MOERMAN & DONOVAN
1250 CONNECTICUT AVENUE NORTH WEST
SUITE 700

WASHINGTON DC 20036

INV: (202) 298-8100 REF: PETW V. PA
 PO: DEPT:

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Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT

AFFIDAVIT OF SERVICE

Alexandra L. Priest, being duly sworn, deposes and says:

That I am a secretary in The Port Authority of New York and New Jersey Law Department and am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.

That on the 16th day of July, 2018, I served the annexed **CERTIFICATION OF JUAN M. BARRAGAN IN OPPOSITION TO COMPLAINANT'S MOTION TO EXTEND THE TIME TO FILE PROPOSED FINDINGS OF FACT, CONCLUSIONS OF LAW, AND APPENDIX** upon:

Law Office of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue N.W., Suite 700
Washington, D.C. 20036
Attn: Paul M. Donovan, Esq.

by depositing a true copy thereof in a sealed wrapper, in a depository maintained by Federal Express to be shipped via Federal Express Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.



Sworn to before me this
16th day of July, 2018



Notary Public

Natalie D. Russell
NOTARY PUBLIC, State of New York
No. 01RU6358214
Qualified in New York County
Commission Expires May 8, 2021

ORIGIN ID: PCTA (212) 435-3529
 JUAN M. BARRAGAN, ESQ.
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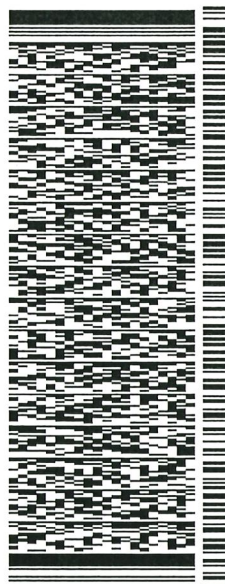
TO SECRETARY,

FEDERAL MARITIME COMMISSION
 800 N. CAPITAL STREET, NW

WASHINGTON DC 20573

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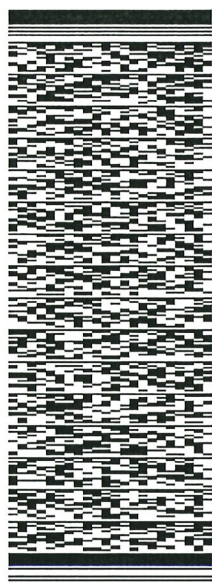
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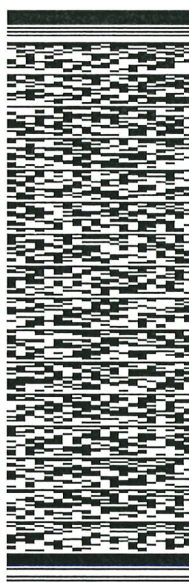
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 LAW OFFICE DONALD F. BURKE
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